



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

NOV 12 2002

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 11790
(FOURTH REVISION)

EXPIRATION DATE: October 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Bechtel Jacobs Company LLC
Oak Ridge, TN
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of Specification 5A and 5B cylinders which have been manufactured in variance to the American National Standards Institute (ANSI) Standard N14.1 referenced in Title 49 of the Code of Federal Regulations (variations authorized by this exemption are listed in paragraph 7). All non-specification cylinders shall be transported within DOT Specification 20PF-1 overpacks regardless of their content. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.417(a)(8) and 173.420(a) as they pertain to cylinders containing uranium hexafluoride, fissile must be offered for transportation in packagings designed, fabricated, inspected, tested, and marked in accordance with the ANSI Standard N.14.1 in effect at the time the packaging was manufactured.

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5. BASIS: This exemption is based on the application of Bechtel Jacobs Company LLC dated October 18, 2002, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Uranium hexafluoride, fissile	7	UN 2977	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING -

(1) The Specification 5A and 5B cylinders transported under the provisions of this exemption must fully comply with ANSI Standard N14.1 except as follows:

- Valve coupling shall be constructed of nickel or a nickel-copper alloy (Monel).
- Dip pipe and/or dip pipe tab must be constructed of copper or nickel-copper alloy (Monel).

(2) Regardless of their content, all Specification 5A and 5B cylinders transported under the provisions of this exemption must be contained within DOT Specification 20PF-1 overpacks.

b. OPERATIONAL CONTROLS -

(1) The Specification 5A and 5B cylinders under the provisions of this exemption must be transported by exclusive use highway vehicle only.

(2) A detailed inspection of the transport vehicle will be conducted before loading. The shipment and cargo compartment must be locked and sealed while in route. The driver will maintain periodic communication with a control station operator who can request appropriate local law enforcement agency response, as needed. Shipment must be made without intermediate stops, except for emergency reasons, driver relief, meals or refueling.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption, may reoffer it for transportation provided no modification or change is made to the package or its contents, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility where the package is offered for transportation.

b. In addition to other marking required by Title 49 of the Code of Federal Regulations, the DOT Specification 20PF-1 overpack containing the Specification 5A cylinder must be plainly and durably marked "DOT-E-11790" in accordance with § 172.301(c). This exemption marking is not required on the Specification 5A cylinder.

9. MODES OF TRANSPORTATION AUTHORIZED: Exclusive use motor vehicle only.10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

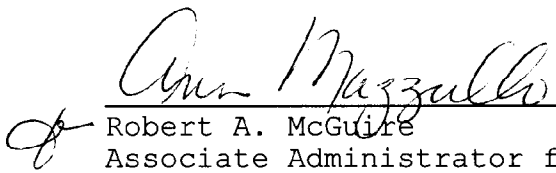
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: RWB/alb